

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 12/18/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
*HEARING ON MOTION FOR DISCOVERY COMPEL PROD OF SELLER DISCLOSURE AND FURTHER ANSWERS FROM DEFENDANT

FILED BY: CLANCY, TIMOTHY F.

TENTATIVE RULING:

Plaintiff's motion to compel is GRANTED IN PART and DENIED IN PART. Plaintiff's motion to compel further answers regarding the seller's disclosures from Defendant Jurado is GRANTED. Defendant Jurado is to provide further answers only on the issue of the seller's disclosure, specifically: why the disclosures cannot be produced, including whether they have been lost or destroyed, and any contact information for the person or entity who Defendant Jurado believes may have possession of the records. Defendant's response is due by January 30, 2026.

Plaintiff's motion to compel Request for Documents, specifically request No. 1, seller's transfer disclosure statement(s) and seller's questionnaire(s) is DENIED.

Plaintiff's request for sanctions is DENIED. Defendant's request for sanctions is also DENIED.

Under Code of Civil Procedure (C.C.P.) section 2025.480(a), "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (*Id.*)

The court finds that Plaintiff's request for seller's transfer disclosure and seller's questionnaire(s) is relevant to the action and the request was not vague, ambiguous, or overbroad as Defendant maintained in their original response.

At Defendant Jurado's March 27, 2025, deposition he stated that he received disclosures related to the property from the seller, copies of which he had in a file at home. Following Defendant Jurado's deposition he produced documents exceeding 400 pages including disclosures such as a 42-page document entitled Natural Hazard Disclosure Statement and Disclosure Report. Defendant Jurado maintains that he has no additional documents to produce. However, Defendant Jurado also provided to Plaintiff, a declaration by his wife, Paula Jurado, who is not a party to this action, stating that she attempted to locate the Transfer Disclosure Statement and a Seller Property Questionnaire by searching with her husband, Defendant Jurado, through their personal possessions, and that she specifically attempted to contact the title company, escrow administrator and the previous real estate agent in an effort to obtain these documents to no avail.

"A representation of inability to comply with the particular demand for inspection...shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category ...has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." (See California C.C.P. §2031.230.) While a declaration with relevant information consistent with C.C.P. §2031.230 was provided to Plaintiff by Defendant Jurado, it was a declaration by Ms. Jurado, who is not a party, and not Defendant Jurado regarding an inability to now comply with providing the requested documents, which may also be inconsistent with, or at least requires clarification, as to his statement in his deposition.

At this juncture, without clarity, this information appears to be inconsistent with Defendant Jurado's testimony at the deposition. As such the court finds good cause for the motion to compel and is ordering Defendant Jurado to provide further answers only on the issue of the seller's disclosures. (C.C.P. § 2025(a), (b)(1).) Specifically, why the disclosures cannot be produced, including whether they have been lost or destroyed, and any contact information for the person or entity who Defendant Jurado believes may have possession of the records. If Defendant Jurado does not have personal

knowledge sufficient to respond he shall state as much but shall also make a reasonable and good faith effort to obtain the information by inquiring of others. (See for example, C.C.P. §2030.220(c) and California Evidence Code §702).

Defendant Jurado's further responses are due to Plaintiff by January 30, 2026.

"The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions." (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

Under the circumstances, the court finds it would be unjust to grant sanctions to either party. Both parties' requests for sanctions are therefore denied.

2. 9:00 AM CASE NUMBER: C23-02761

CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY REQUESTS
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.**

TENTATIVE RULING:

"The superior court possesses considerable discretion to restrict burdensome or duplicative discovery." (*Carter v. Superior Court* (1990) 218 Cal. App. 3d 994, 997-998.)

Under the Civil Discovery Act of 1986,

the Legislature has provided that although a party "may obtain discovery by one or more" of several methods, "[t]he court shall restrict the frequency or extent of use of these discovery methods if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case" (§ 2019, subd. (b).) In addition, section 2025, subdivision (i), authorizes the court, "for good cause shown" to protect a party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," by ordering that "all or certain of the writings or tangible things designated in the deposition notice not be produced, inspected, or copied."

(*Carter surpa*, pp. 997-998.)

Here, the court does not find the requested discovery to be burdensome or duplicative. First there are multiple parties all with different roles and different alleged conduct and it is reasonable to anticipate that their responses to the same discovery requests may be different. Furthermore, to the extent that their responses would be identical that would cut against an argument that it is unduly burdensome to comply as counsel would be positioned to merely provide identical responses.

Gary Johnson, Kevin Johnson, and Johnson & Johnson Consulting, LLC ("Defendants/Cross-Complainants") have asserted that they have now served substantive, code compliant, and verified supplemental responses to the eleven sets of written discovery demands at issue here, and they agreed to produce all responsive documents in their possession, custody or control. However, the Defendants/Cross-Complainants also maintain that several documents cannot be produced until Plaintiff/Cross-Defendant Sunpoint ("Plaintiff/Cross-Defendant") produces their own responses to Defendant/Cross-Complainant's motion to compel, asserting that most of the documents are internal to Plaintiff/Cross-Defendant. Plaintiff/Cross-Defendant also asserts that not all documents have been

produced as indicated by Defendant/Cross-Complainant. As such, it would appear that the court's intervention would be appropriate in light of Plaintiff/Cross-Defendant's motion to compel. The court reviewed all discovery sought and makes the following rulings:

As to Defendant/Cross-Complainant, Gary Johnson:

1. Form Interrogatories ("FROGS")– General, Set One:

Request Nos.: 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, 8.8, 9.1, 9.2, 10.1, 10.2, 10.3, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 13.1, 13.2, 14.1, 14.2.

The motion to compel further responses is GRANTED, however, Plaintiff/Cross-Defendant is ORDERED to provide a definition to the word "incident."

Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544, 561.)

However, the court finds that Defendant/Cross-Complainant's objection as to the word "incident" being vague and ambiguous was a valid objection. Plaintiffs' FROGs did not include any specific definition of the term "incident." "The term 'INCIDENT' may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc." (Cal. Prac. Guide Civ. Pro. Before Trial, § 8:933.8.) This case involves conduct related to multiple defendants/cross-complainants and involves more than one instance of alleged bad faith conduct by all parties. Thus, it is nearly impossible for Defendant/Cross-Complainant to properly respond to these interrogatories as they are ambiguous.

However, the court observes that the responses to the FROGs were not verified and while only a few were substantively answered (see below) not all were "only objections," thus they must have been verified. (See C.C.P. §2030.250(c); *Melendez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1351.) An unverified response is equivalent to no response for purposes of a motion to compel a response and untimely responses result in a waiver of all objections to the interrogatories. (See C.C.P. §2030.290, subdivisions (a) and (b); *Appleton v. Superior Court* (1988) 206 Cal.App. 3d. 632, 636.) As a result, the court orders Defendant/Cross-complainant to file verified, objection-free further responses by January 30, 2026, unless they have already done so.

However, Plaintiff/Cross-Defendant Sunpoint is ordered to provide a definition for "incident" by December 29, 2025, so that proper responses can be provided. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [An interrogatory must be answered if "the nature of the information sought is apparent."]; *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430 [Rather than merely sustaining an objection based on an ambiguous word, courts have favored judges ordering that the term be rephrased] or, in this instance, defined.)

Request Nos. 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

The court finds that Defendant/Cross-complainant provided substantive responses, however, they were not verified and therefore Plaintiff/Cross-Defendant's Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

2. Special Interrogatories, Set One, Request Nos. 1-84.

Plaintiff/Cross-Defendant's motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide further verified, code-compliant, objection free responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided "only objections" to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. Furthermore, the court reviewed the objections provided and finds they are without merit.

3. Requests for Production of Documents, Set One, Request Nos.: 1-46.

Plaintiff/Cross-Defendant's motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide requested documents or otherwise verified, code-complaint, objection free responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided "only objections" to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. The court reviewed the objections provided and finds they are without merit. Furthermore, to the extent that Defendant/Cross-Complainant assert the attorney-work product privilege or work product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

Kevin Johnson:

1. Form Interrogatories – General, Set One, Nos.: 2.5, 2.8, 2.9, 2.10, 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, 8.8, 9.1, 9.2, 10.1, 10.2, 10.3, 13.1, 13.2, 14.1 14.2, 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

Request Nos. 2.5, 2.8, 2.9, and 2.10. The objections are overruled. Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544, 561.)

Request Nos. 6.2-6.7, 8.1-8.8, 9.1-9.2, 10.1-10.3, 13.1-13.2, 14.1-14.2. The court finds that Defendant/Cross-Complainant's objection as to the word "incident" being vague and ambiguous was a valid objection. Plaintiffs' FROGs did not include any specific definition of the term "incident." "The term 'INCIDENT' may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc." (Cal. Prac. Guide Civ. Pro. Before Trial, § 8:933.8.) This case involves conduct related to multiple defendants/cross-complainants and involves more than one instance of alleged bad faith conduct by all parties. Thus, it is nearly impossible for Defendant/Cross-complainant to properly respond to these interrogatories as they are ambiguous.

However, the court observes that the responses to the FROGs were not verified and while only a few were substantively answered (see below) not all were "only objections," thus they must have been verified. (See C.C.P. §2030.250(c); *Melendez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1351.) An unverified response is equivalent to no response for purposes of a motion to compel a response and untimely responses result in a waiver of all objections to the interrogatories. (See C.C.P. §2030.290,

subdivisions (a) and (b); *Appleton v. Superior Court* (1988) 206 Cal.App. 3d. 632, 636.) As a result, the court orders Defendant/Cross-complainant to file verified, objection-free further responses by January 30, 2026, unless they have already done so.

However, Plaintiff/Cross-Defendant Sunpoint is ordered to provide a definition for “incident” by December 29, 2025 so that proper responses can be provided. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [An interrogatory must be answered if “the nature of the information sought is apparent.”]; *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430 [Rather than merely sustaining an objection based on an ambiguous word, courts have favored judges ordering that the term be rephrased or, in this instance, defined.].)

Request No. 50.1. This request was not fully answered as to all of its subparts and therefore further response is warranted.

Request Nos. 50.2, 50.3, 50.4, 50.5, and 50.6. The court finds that Defendant/Cross-complainant provided substantive responses, however, they were not verified and therefore Plaintiff/Cross-Plaintiff/Cross-Defendant’s Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

2. Form Interrogatories – Employment Law, Set One, Nos.: . 200.1, 200.2, 200.3, 200.4, 200.6, 205.1, 207.2, 208.1, 209.1, 210.1, 210.2, 210.3, 210.4, 210.5, 210.6, 212.1, 212.3, 212.4, 212.5, 212.6, 212.7, 213.1, 213.2, 215.1, 215.2, and 217.1.

Defendant/Cross-complainant provided “only objections” to each of the 26 FROGS-Employment Law and therefore counsel could have verified the responses but it does not appear that they did.

Furthermore, the court reviewed the objections provided and finds the following:

Request Nos. 200.1, 200.2, 200.3, 200.6. Objections overruled. These requests appear relevant and the court does not believe that specific privacy rights are implicated.

Request No. 205.1. Objection that the term “violation of public policy” is vague and ambiguous would be sustained.

Request Nos. 207.2, 209.1, 210.1, 210.5, 210.6, 212.2, 212.7, 213.1, 213.2. All requests appear to relate to damages and would be relevant, if applicable. The objections are overruled.

Request Nos. 215.1 and 215.2. These requests relate to the investigation and the objections are overruled.

Request No. 217.1. This request is duplicative of Form Interrogatory 17.1, as Defendant/Cross-Complainant maintains, however, it is not duplicative to him as that interrogatory was not requested of him in the Form Interrogatories. The objections are overruled.

Despite having merit to at least one objection, Defendant/Complainant failed to initially provide verified responses and as a result, Plaintiff/Cross-Defendant’s Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

3. Requests for Admissions, Set One, Nos.: 1-18.

Pursuant to California C.C.P. §2033.220, subdivision (a): “Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.” (*Id.*) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.) “The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.” (C.C.P. section 2033.240, subdivision (a).)

Defendant/Cross-complainant provided “only objections” to all 18 requests for admission, and therefore counsel could have verified the responses but it does not appear that they did. Furthermore, the court reviewed the objections provided and finds they are without merit. Plaintiff/Cross-Defendant’s Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

4. Special Interrogatories, Set One, Nos.: 1-84.

Plaintiff/Cross-Defendant’s motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide further objection free, verified, code compliant responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided “only objections” to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. Furthermore, the court reviewed the objections provided and finds they are without merit. The court finds the evidence sought specifically relates to Defendant’s/Cross-complainant’s cause of actions and the entirety of the lawsuit.

5. Requests for Production of Documents, Set One, Nos.: 1-39.

Plaintiff/Cross-Defendant’s motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide requested documents or otherwise verified, code-complaint responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided only objections to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. The court reviewed the objections provided and finds they are without merit. Furthermore, to the extent that Defendant/Cross-Complainant assert the attorney-work product privilege or work product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

Johnson & Johnson:

1. Form Interrogatories – General, Set One, Nos.: 8.1, 8.7, 8.8, 9.1, 9.2, 12.4, 12.5, 12.6, 13.1, 13.2, 14.1, and 14.2.

The motion to compel further responses is GRANTED, however, Plaintiff/Cross-Defendant is ORDERED to provide a definition to the word “incident.”

Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242,

1250.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544, 561.)

However, the court finds that Defendant/Cross-Complainant's objection as to the word "incident" being vague and ambiguous was a valid objection. Plaintiffs' FROGs did not include any specific definition of the term "incident." "The term 'INCIDENT' may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc." (Cal. Prac. Guide Civ. Pro. Before Trial, § 8:933.8.) This case involves conduct related to multiple defendants/cross-complainants and involves more than one instance of alleged bad faith conduct by all parties. Thus, it is nearly impossible for Defendant/Cross-complainant to properly respond to these interrogatories as they are ambiguous.

However, the court observes that the responses to the FROGs were not verified and while only a few were substantively answered (see below) not all were only objections, thus they must have been verified. (See C.C.P. §2030.250(c); *Melendez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1351.) An unverified response is equivalent to no response for purposes of a motion to compel a response and untimely responses result in a waiver of all objections to the interrogatories. (See C.C.P. §2030.290, subdivisions (a) and (b); *Appleton v. Superior Court* (1988) 206 Cal.App. 3d. 632, 636.) As a result, the court orders Defendant/Cross-complainant to file verified, objection-free further responses by January 30, 2026, unless they have already done so.

However, Plaintiff/Cross-Defendant Sunpoint is ordered to provide a definition for "incident" by December 29, 2025 so that proper responses can be provided. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [An interrogatory must be answered if "the nature of the information sought is apparent."]; *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430 [Rather than merely sustaining an objection based on an ambiguous word, courts have favored judges ordering that the term be rephrased or, in this instance, defined.])

2. Special Interrogatories, Set One, Nos.: 1-18.

Plaintiff/Cross-Defendant's Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

Defendant/Cross-complainant answered request No. 1 and then provided "only objections" to the remaining 17. Nonetheless none were verified by Defendant/Cross-Complainant or counsel. The court finds the evidence sought specifically relates to Defendant's/Cross-complainant's cause of actions and the entirety of the lawsuit. The court also finds that reference to the cross-complaint when the questions ask for specific facts and evidence to support Defendant/Cross-complainant's assertions is not a valid objection and was raised in all responses.

3. Requests for Production of Documents, Set One, Nos.: 1-11.

Plaintiff/Cross-Defendant's motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide requested documents or otherwise verified, code-complaint responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided "only objections" to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. The court reviewed the objections provided and finds they are without merit. Furthermore, to the extent that Defendant/Cross-Complainant assert the attorney-work product privilege or work

product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

C.C.P. § 2030.300(d) mandates sanctions against a party or counsel who unsuccessfully opposes a motion to compel unless substantial justification exists. Sanctions are also authorized under C.C.P. §2023.030 for misuse of the discovery process as defined in C.C.P. § 2023.010. The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See C.C.P. §2030.290, subdivision (c).)

Generally, monetary sanctions are mandatory to parties who unsuccessfully defend against discovery motions, unless courts find substantial justification or other injustice. (E.g., *Foothill Properties v. Lyon/Copley Corona Assocs., L.P.* (1996) 46 Cal.App.4th 1542, 1557-1558.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) “The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

“There is no requirement that misuse of the discovery process must be willful for a monetary sanction to be imposed.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. May 2009 update) § 15.94, p. 1440, citing C.C.P., § 2023.030, subd. (a); see 2 Hogan & Weber, Cal. Civil Discovery (2d ed. 2005) Sanctions, § 15.4, p. 15-8 [“Whenever one party's improper actions—even if not ‘willful’—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party” (fn. omitted)]; *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971.)

While the court does not find substantial justification for Defendants/Cross-Complainants’ failure to initially provide verified valid objections or code-compliant responses, the court finds that the request for sanctions is excessive. This court does not have the benefit of knowing to what extent Defendants’/Cross-Complainants’ have already provided further responses or produced documents as the parties have provided the court with conflicting information as to this point. While the court is Granting the motion to compel despite representations that there is no need to because Defendants’/Cross-Complainants’ have already provided further responses, this point is disputed by Plaintiff/Cross-Defendant and Defendants/Cross-Complainants admit to not providing all requested documents. Even so, California Rule of Court 3.1348 permits sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when the requested discovery was provided to the moving party after the motion was filed. (See also California C.C.P. §2030.300, subdivision (d).)

Plaintiff/Cross-Defendant’s arguments were convincing and compelled this court to provide intervention and rule substantively on the motion. As such, the court orders Defendant/Cross-Complainants to pay sanctions in the amount of \$900 to Plaintiff/Cross-Defendant by January 30, 2026.

3. 9:00 AM CASE NUMBER: C23-01219

CASE NAME: ELVECIO MACHADO VS. GINO CARUSO

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1 AGAINST ELVECIO MACHADO
FILED BY: CARS TO GO TOWING, INC.

TENTATIVE RULING:

Defendant Cars to Go Towing, Inc.’s Motion to Compel Further Responses to Special Interrogatories (Set One); and for Sanctions is GRANTED in PART and DENIED in PART. The Court GRANTS requests for further responses and for monetary sanctions in the amount of \$950, both of which are due to Defendant by January 30, 2026. The Court DENIES the request to deem Plaintiff Machado’s response invalidated and unverified and DENIES the request for issue and evidence sanctions.

Defendant propounded on Plaintiff Elvecio Machado Special Interrogatories with approximately 44 requests. Plaintiff provided only objections to 42 of the 44 requests, answered one and provided an objection but also provided a substantive answer to one.

Defendant’s asserts that when Plaintiff responded with his attorney and co-plaintiff wife’s names in response to Request No. 44, to identify each person that assisted in the preparation of the answers to all the preceding interrogatories this renders his responses unverified and invalid. This court rejects that argument. The question reasonably implies that the signatory should identify who “assisted” him in the preparation of the answers, which Plaintiff answered. This court does not find it unreasonable for the signatory to believe that the question only called for *who else* assisted and did not require the individual providing the responses to include themselves in the answer. The court therefore declines to find Plaintiff Machado’s response invalidated and unverified.

The answer to each interrogatory must be “as complete and straightforward as the information reasonably available to the responding party permits.” (California C.C.P. §2030.220(a); *Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 590.) Objections must be justified with specific grounds set forth clearly in the response. (California C.C.P. §2030.240.) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (C.C.P. § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (C.C.P. § 2030.220(c).) An answer is incomplete if it merely refers to other documents without summarizing them. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

Overbroad is a recognized objection if the breadth imposes an undue burden or the request is irrelevant to the subject matter. If unduly burdensome, the opposing party must show the amount of work required. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549-550, (see C.C.P. §§2017.020(a) and 2017.010, see also *Perkins v. Superior Court* (1981) 118 Cal.App.3d 761, 764-765.) Many of Defendant’s requests for Special Interrogatories seek information as to the nature of the Plaintiff’s claims, they do not seek to obtain compilations of evidence that appear to be non-existent.

Furthermore, when the requests focus on a single subject they are not considered compound. ([“The rule should probably apply only where *more than a single subject* is covered by the question.”] See

Clement v. Alegre (2009) 177 Cal. App. 4th 1277, 1291, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, (The Rutter Group 2009), ¶ 8:979, p. 8F-21.)

Moreover, responses to the co-defendant's discovery requests may also be responsive to Defendant Cars-To-Go Towing, Inc.'s requests. *Carter v. Superior Court* (1990) 218 Cal. App. 3d 994, 997-998:

While the Civil Discovery Act of 1986, the Legislature has provided that although a party "may obtain discovery by one or more" of several methods, "[t]he court shall restrict the frequency or extent of use of these discovery methods if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case" (§ 2019, subd. (b).) In addition, section 2025, subdivision (i), authorizes the court, "for good cause shown" to protect a party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," by ordering that "all or certain of the writings or tangible things designated in the deposition notice not be produced, inspected, or copied."

The superior court possesses considerable discretion to restrict burdensome or duplicative discovery. Nevertheless, Defendant Cars-to-Go, Towing, Inc. is entitled to responses to its own interrogatories. (C.C.P. §§ 2030.210(a) ["The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory . . ."]). Plaintiff's "duplicative" objection to the extent it is based on the fact that same evidence was provided in response to the co-defendants, is overruled. To the extent the objection is based on the fact that other discovery methods sought the same evidence, Plaintiff failed to present evidence demonstrating such and the objection is overruled for that reason as well.

Accordingly, as to Plaintiff Machado's responses to Defendant Cars to Go Towing, Inc.'s Special Interrogatories the court makes the following rulings:

Request Nos. 1-7, 9, 10, 12, 15-29, 31-41, and 43: Plaintiff Machado largely maintains that these requests are duplicative, vague, and would necessitate a complication of abstracts, compilations or a summary of documents. This court overrules Plaintiff's objections and orders Plaintiff to provide code-compliant responses by January 30, 2026.

Request Nos. 8, 11: Plaintiff maintains that they would necessitate a complication of abstracts, compilations or a summary of documents. These requests seek information as to the nature of the Plaintiff's claims, they do not seek to obtain non-existent compilations of evidence. This court overrules Plaintiff's objections and orders Plaintiff to provide code-compliant responses by January 30, 2026.

Request No. 12, 13: Plaintiff asserts that they cannot provide a response because the term "loan" is not defined. Vague or ambiguous is a valid objection only if the question is wholly unintelligible. Defendant's response in their separate statement offers an explanation for the term "loan" by referencing back to Request No. 1, "Identify the amounts of money that you invested in the company." As such, this court finds Plaintiff Machado's objections to be valid, either the term is too ambiguous for Plaintiff to intelligently respond, or it means the same as defined in Request No. 1 and therefore this would be an example of being duplicative. Objections sustained.

Request No. 42: Plaintiff provided an objection but also provided a substantive response. The court finds the response code-compliant.

C.C.P. § 2030.300(d) mandates sanctions against a party or counsel who unsuccessfully opposes a motion to compel unless substantial justification exists. Sanctions are also authorized under C.C.P. §2023.030 for misuse of the discovery process as defined in C.C.P. § 2023.010. “There is no requirement that misuse of the discovery process must be willful for a monetary sanction to be imposed.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. May 2009 update) § 15.94, p. 1440, citing C.C.P., § 2023.030, subd. (a); see 2 Hogan & Weber, Cal. Civil Discovery (2d ed. 2005) Sanctions, § 15.4, p. 15-8 [“Whenever one party's improper actions—even if not ‘willful’—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party” (fn. omitted)]; *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971.)

While the court does not find substantial justification for Plaintiff Machado’s failure to provide valid objections or code-compliant responses to some of the requests, the court does find that the excessive request for sanctions, the partial code-compliant response and the documented interactions between counsel warrant a reduction of sanctions. The court orders Plaintiff to pay sanctions in the amount of \$995 by January 30, 2026.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C23-02259
CASE NAME: JOHN RICCABONA VS. SERGIO HERMOSILLO CASTRO
SETTLEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

Parties are to appear at 1:30 p.m. with clients and/or authorized person to engage in good faith settlement discussions.